

25CMCV01878 25CMCV01878

County: los-angeles

Division: Civil Law and Motion

Department: E

Hearing date: 2026-08-19

Motion: DEFENDANT FCA US, LLC'S MOTION FOR SANCTIONS DATE: August 19, 2026 TIME: 8:30 A.M.

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Case Number: 25CMCV01878 Hearing Date: August 19, 2026 Dept: E

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES – SOUTH CENTRAL DISTRICT

FRANCISCO MACIEL

GARCIA AND ABRAHAM MACIEL,

Plaintiffs,

vs.

FCA US LLC; HADDAD DODGE RAM; and DOES 1

through 10, inclusive,

Defendants.

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CASE

NO: 25CMCV01878

[TENTATIVE] ORDER RE: DEFENDANT FCA US, LLC'S MOTION FOR
SANCTIONS

DATE: August 19, 2026

TIME: 8:30 A.M.

DEPT.: E

Moving Party: Defendant

FCA US, LLC

Responding Parties: Plaintiffs

Francisco Maciel Garcia and Abraham Maciel

Notice: OK

Tentative Ruling: Defendant's

Motion for Sanctions is GRANTED.

I.

BACKGROUND

This

is a Song-Beverly action regarding an allegedly defective 2022 Ram 250 (the "Subject Vehicle"). Plaintiffs Francisco Maciel Garcia and Abraham Maciel (collectively, the "Plaintiffs") allege that the Subject Vehicle was warranted, manufactured and/or distributed by Defendant FCA US, LLC ("FCA"). On or about May 25, 2022, Plaintiffs entered a warranty contract with FCA regarding the Subject Vehicle, but Plaintiff alleges that various defects and nonconformities to warranty manifested within the applicable express warranty period. And Plaintiffs allege they delivered the Subject Vehicle to Defendant Haddad Dodge Ram ("Haddad") on at least one occasion, but that Haddad breached duties owed to Plaintiffs to repair the Subject Vehicle in accordance with industry standards.

On November

4, 2025, Plaintiffs filed their original Complaint against Defendants FCA, Haddad, and Does 1 through 10, inclusive (collectively, the "Defendants"), alleging causes of action for: (1) Violation of Subdivision (d) of Civil Code Section 1793.2; (2) Violation of Subdivision (b) of Civil Code Section 1793.2; (3) Violation of Subdivision (a)(3) of Civil Code Section 1793.2; (4) Breach of the Implied Warranty of Merchantability (Civ. Code, § 1791.1; § 1794; § 1795.5); (5) Negligent Repair; and (6) Fraudulent Inducement Concealment.

On July

17, 2026, 2026, FCA filed the instant Motion for Sanctions.

On July

31, 2026, Plaintiffs filed their Opposition.

On

August 12, 2025, FCA filed its Reply.

II.

LEGAL STANDARD

Code

of Civil Procedure § 871.26 mandates that a defendant in a Song-Beverly Act

matter provide initial disclosures to the plaintiff (and vice versa) “[w]ithin 60 days after the filing of the answer or other responsive pleading.” (Code Civ. Proc. § 871.26(h).)

Unless the party failing to provide initial disclosures shows good cause, and notwithstanding any other law and in addition to any other sanctions imposed, Section 871.26[1] mandates the imposition of sanctions in an amount ranging from \$1,500 to \$2,500, to be paid within 15 business days. (Id., § 871.26(j).)

III.

ANALYSIS

A.

Discussion

FCA

argues Plaintiffs were required to provide all mandatory disclosures by April 10, 2025[2] but have failed to do produce the documents required by Section 871.26(f) and failed to provide complete information in response to Section 871.26(g). Accordingly, FCA moves for \$1,500.00 in sanctions pursuant to Section 871.26(j)(1).

In opposition, Plaintiffs do not dispute that they have not complied with Section 871.26 and dispute FCA's motion “only to the extent it seeks an order compelling immediate production of documents and information that Plaintiffs have been unable to locate despite diligent, ongoing efforts” and instead request a 30-day continuance “to complete their search and supplement their disclosures.” (Opp., p. 2:4-8.)

FCA does not request an order compelling production of documents or an order compelling Plaintiffs to provide complete information; FCA only requests monetary sanctions as required pursuant to Section 871.26(j)(1) for Plaintiff's failure to complete the initial disclosures. As Plaintiffs do not dispute that they have failed to comply with Section 871.26, the Court finds monetary sanctions are mandatory and warranted.

IV.

CONCLUSION

FCA's Motion for Sanctions is GRANTED in the amount of \$1,500.00. The awarded sanctions are against Plaintiff's counsel only and are ordered to be paid to FCA's counsel no later than September 15, 2026.

[1]

Unspecified Section references are to the Code of Civil Procedure.

[2]

The dates provided by FCA are incorrect.

FCA's counsel declares that FCA filed its responsive pleading "[o]n February 9, 2025" making "Plaintiff's mandatory disclosures [] due on or before April 10, 2025." (Lopez Decl., ¶¶ 2-3.)

But this matter was not filed until November 4, 2025. (See Complaint, filed 11/4/25.) And FCA's Answer was filed on February 9, 2026, not February 9, 2025. (See Answer, filed 12/8/25.)

Although counsel's attested dates and calculations are incorrect, the Court is able to discern the correct dates from the Court's docket, the parties' pleadings and the attached exhibits.

Accordingly, the Court continues with its analysis using the corrected dates.